

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.						1. REQUISITION NUMBER		PAGE 1 OF 49					
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER M0026426R0009		6. SOLICITATION ISSUE DATE 31 Mar 2026					
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Shaye Nelson				b. TELEPHONE NUMBER (No collect calls) 703-432-1927		8. OFFER DUE DATE/ LOCAL TIME 30 Apr 2026 10:00 AM					
9. ISSUED BY COMMANDER, MCINCR-MCBQ ATTN: DIRECTOR REGIONAL CONTRACTING, 2010 HENDERSON RD QUANTICO, VA 22134-5028 UNITED STATES Shaye Nelson, Email: shaye.nelson@usmc.mil Telephone: 703-432-1927				CODE M00264		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED 541611 ☒ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: 8(A) USD 24,500,000.00							
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ INVITATION ☐ ☐ FOR QUOTE ☐ FOR BID ☒ (RFQ) (IFB) (RFP)							
15. DELIVER TO CODE				16. ADMINISTERED BY CODE									
See Continuation													
17a. CONTRACTOR/OFFEROR CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE									
TELEPHONE NUMBER													
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM									
19. ITEM NUMBER		20. SCHEDULE OF SUPPLIES/SERVICES				21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
		See Continuation											
		(Use Reverse and/or Attach Additional Sheets as Necessary)											
25. ACCOUNTING AND APPROPRIATION DATA								26. TOTAL AWARD AMOUNT (For Government Use Only)					
See Continuation													
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA								☒ ARE ☐ ARE NOT ATTACHED					
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA								☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED						☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Continuat							
30a. SIGNATURE OF OFFEROR/CONTRACTOR						31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)							
30b. NAME AND TITLE OF SIGNER (Type or print)			30c. DATE SIGNED			31b. NAME OF CONTRACTING OFFICER (Type or print)			31c. DATE SIGNED				

Solicitation/Contract Form Continuation

Training and Education Command (TECOM) Human Performance Standards Development and Support

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Analysis & Assessment. Provide support in the development, modification, validation, and analysis of physical fitness programs and readiness in accordance with PWS para 9.1-9.1.7. Pricing Arrangement: Firm Fixed Price	7	Months		
0002	Policy & Doctrine. Provide support in the use of Artificial Intelligence (AI), Power BI, Power Automation and other data driven platforms to create interactive visualizations in reports and dashboards in accordance with PWS Para 9.1.8, 9.2.7-9.2.9. Pricing Arrangement: Firm Fixed Price	7	Months		
1001	Analysis & Assessment. Provide support in the development, modification, validation, and analysis of physical fitness programs and readiness in accordance with PWS para 9.1-9.1.7. Pricing Arrangement: Firm Fixed Price	12	Months		
1002	Policy & Doctrine. Provide support in the use of Artificial Intelligence (AI), Power BI, Power Automation and other data driven platforms to create interactive visualizations in reports and dashboards in accordance with PWS Para 9.1.8, 9.2.7-9.2.9. Pricing Arrangement: Firm Fixed Price	12	Months		
2001	Analysis & Assessment. Provide support in the development, modification, validation, and analysis of physical fitness programs and readiness in accordance with PWS para 9.1-9.1.7. Pricing Arrangement: Firm Fixed Price	12	Months		
2002	Policy & Doctrine. Provide support in the use of Artificial Intelligence (AI), Power BI, Power Automation and other data driven platforms to create interactive visualizations in reports and dashboards in accordance with PWS Para 9.1.8, 9.2.7-9.2.9. Pricing Arrangement: Firm Fixed Price	12	Months		
3001	Analysis & Assessment. Provide support in the development, modification, validation, and analysis of physical fitness programs and readiness in accordance with PWS para 9.1-9.1.7. Pricing Arrangement: Firm Fixed Price	12	Months		
3002	Policy & Doctrine. Provide support in the use of Artificial Intelligence (AI), Power BI, Power Automation and other data driven platforms to create interactive visualizations in reports and dashboards in accordance with PWS Para 9.1.8, 9.2.7-9.2.9. Pricing Arrangement: Firm Fixed Price	12	Months		
4001	Analysis & Assessment. Provide support in the development, modification, validation, and analysis of physical fitness programs				

	and readiness in accordance with PWS para 9.1-9.1.7. Pricing Arrangement: Firm Fixed Price	12	Months		
4002	Policy & Doctrine. Provide support in the use of Artificial Intelligence (AI), Power BI, Power Automation and other data driven platforms to create interactive visualizations in reports and dashboards in accordance with PWS Para 9.1.8, 9.2.7-9.2.9. Pricing Arrangement: Firm Fixed Price	12	Months		

Continuation of Description

Requirements

TECOM PSD, Human Performance Branch (HPB) Support Services

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Please contact POC upon delivery. DoDAAC: M95430 CountryCode: USA COMMANDING GENERAL TRAINING & EDUCATION COMMAND, 2007 ELLIOT ROAD QUANTICO, VA 22134 UNITED STATES Douglas Marocco, TECOM Email: douglas.marocco@usmc.mil
0002	Inspection and Acceptance Location Both Destination Instructions: Please contact POC upon delivery. DoDAAC: M95430 CountryCode: USA COMMANDING GENERAL TRAINING & EDUCATION COMMAND, 2007 ELLIOT ROAD QUANTICO, VA 22134 UNITED STATES Douglas Marocco, TECOM Email: douglas.marocco@usmc.mil
1001	Inspection and Acceptance Location Both Destination Instructions: Please contact POC upon delivery DoDAAC: M95430 CountryCode: USA COMMANDING GENERAL TRAINING & EDUCATION COMMAND, 2007 ELLIOT ROAD QUANTICO, VA 22134 UNITED STATES Douglas Marocco, TECOM Email: douglas.marocco@usmc.mil
1002	Inspection and Acceptance Location Both Destination Instructions: Please contact POC upon delivery. DoDAAC: M95430 CountryCode: USA

	COMMANDING GENERAL TRAINING & EDUCATION COMMAND, 2007 ELLIOT ROAD QUANTICO, VA 22134 UNITED STATES Douglas Marocco, TECOM Email: douglas.marocco@usmc.mil
2001	Inspection and Acceptance Location Both Destination Instructions: Please contact POC upon delivery. DoDAAC: M95430 CountryCode: USA COMMANDING GENERAL TRAINING & EDUCATION COMMAND, 2007 ELLIOT ROAD QUANTICO, VA 22134 UNITED STATES Douglas Marocco, TECOM Email: douglas.marocco@usmc.mil
2002	Inspection and Acceptance Location Both Destination Instructions: Please contact POC upon delivery. DoDAAC: M95430 CountryCode: USA COMMANDING GENERAL TRAINING & EDUCATION COMMAND, 2007 ELLIOT ROAD QUANTICO, VA 22134 UNITED STATES Douglas Marocco, TECOM Email: douglas.marocco@usmc.mil
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3002	Inspection and Acceptance Location Both Destination Instructions: Please contact POC upon delivery. DoDAAC: M95430 CountryCode: USA

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4002	Inspection and Acceptance Location Both Destination Instructions: Please contact POC upon delivery. DoDAAC: M95430 CountryCode: USA COMMANDING GENERAL TRAINING & EDUCATION COMMAND, 2007 ELLIOT ROAD QUANTICO, VA 22134 UNITED STATES Douglas Marocco, TECOM Email: douglas.marocco@usmc.mil

Continuation of Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 24 Jun 2026 To 23 Jan 2027	7 Months	
0002	Period of Performance From 24 Jun 2026 To 23 Jan 2027	7 Months	
1001	Period of Performance From 24 Jan 2027 To 23 Jan 2028	12 Months	
1002	Period of Performance From 24 Jan 2027 To 23 Jan 2028	12 Months	
2001	Period of Performance From 24 Jan 2028 To 23 Jan 2029	12 Months	
2002	Period of Performance From 24 Jan 2028 To 23 Jan 2029	12 Months	
3001	Period of Performance From 24 Jan 2029 To 23 Jan 2030	12 Months	
3002	Period of Performance From 24 Jan 2029 To 23 Jan 2030	12 Months	
4001	Period of Performance From 24 Jan 2030 To 23 Jan 2031	12 Months	
	Period of Performance	12 Months	

4002	From 24 Jan 2030 To 23 Jan 2031		
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Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management-Maintenance.	Feb 2026		
52.219-27	Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program.	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside.	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award.	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim.	Feb 2026		
52.203-3	Gratuities.	Apr 1984		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services.	Feb 2026		
52.224-3	Privacy Training.	Jan 2017		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Aug 2025		
252.227-7015	Technical Data-Commercial Products and Commercial Services.	Jan 2025		
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025		
252.239-7018	Supply Chain Risk.	Dec 2022		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		

DFARS Clauses Incorporated by Full Text

252.204-7012 Safeguarding Covered Defense Information and Cyber Incident Reporting. (May 2024)

SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024)

(a) *Definitions.* As used in this clause-

"Adequate security" means protective measures that are commensurate with the consequences and probability of loss, misuse, or unauthorized access to, or modification of information.

"Compromise" means disclosure of information to unauthorized persons, or a violation of the security policy of a system, in which unauthorized intentional or unintentional disclosure, modification, destruction, or loss of an object, or the copying of information to unauthorized media may have occurred.

"Contractor attributional/proprietary information" means information that identifies the contractor(s), whether directly or indirectly, by the grouping of information that can be traced back to the contractor(s) (e.g., program description, facility locations), personally identifiable information, as well as trade secrets, commercial or financial information, or other commercially sensitive information that is not customarily shared outside of the company.

"Controlled technical information" means technical information with military or space application that is subject to controls on the access, use, reproduction, modification, performance, display, release, disclosure, or dissemination. Controlled technical information would meet the criteria, if disseminated, for distribution statements B through F using the criteria set forth in DoD Instruction 5230.24, Distribution Statements on Technical Documents. The term does not include information that is lawfully publicly available without restrictions.

"Covered contractor information system" means an unclassified information system that is owned, or operated by or for, a contractor and that processes, stores, or transmits covered defense information.

"Covered defense information" means unclassified controlled technical information or other information, as described in the Controlled Unclassified Information (CUI) Registry at <http://www.archives.gov/cui/registry/category-list.html>, that requires safeguarding or dissemination controls pursuant to and consistent with law, regulations, and Governmentwide policies, and is-

(1) Marked or otherwise identified in the contract, task order, or delivery order and provided to the contractor by or on behalf of DoD in support of the performance of the contract; or

(2) Collected, developed, received, transmitted, used, or stored by or on behalf of the contractor in support of the performance of the contract.

"Cyber incident" means actions taken through the use of computer networks that result in a compromise or an actual or potentially adverse effect on an information system and/or the information residing therein.

"Forensic analysis" means the practice of gathering, retaining, and analyzing computer-related data for investigative purposes in a manner that maintains the integrity of the data.

"Information system" means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

"Malicious software" means computer software or firmware intended to perform an unauthorized process that will have adverse impact on the confidentiality, integrity, or availability of an information system. This definition includes a virus, worm, Trojan horse, or other code-based entity that infects a host, as well as spyware and some forms of adware.

"Media" means physical devices or writing surfaces including, but is not limited to, magnetic tapes, optical disks, magnetic disks, large-scale integration memory chips, and printouts onto which covered defense information is recorded, stored, or printed within a covered contractor information system.

"Operationally critical support" means supplies or services designated by the Government as critical for airlift, sealift, intermodal transportation services, or logistical support that is essential to the mobilization, deployment, or sustainment of the Armed Forces in a contingency operation.

"Rapidly report" means within 72 hours of discovery of any cyber incident.

"Technical information" means technical data or computer software, as those terms are defined in the clause at DFARS 252.227-7013, Rights in Technical Data-Other Than Commercial Products and Commercial Services, regardless of whether or not the clause is incorporated in this solicitation or contract. Examples of technical information include research and engineering data, engineering drawings, and associated lists, specifications, standards, process sheets, manuals, technical reports, technical orders, catalog-item identifications, data sets, studies and analyses and related information, and computer software executable code and source code.

(b) *Adequate security.* The Contractor shall provide adequate security on all covered contractor information systems. To provide adequate security, the Contractor shall implement, at a minimum, the following information security protections:

(1) For covered contractor information systems that are part of an Information Technology (IT) service or system operated on behalf of the Government, the following security requirements apply:

(i) Cloud computing services shall be subject to the security requirements specified in the clause 252.239-7010, Cloud Computing Services, of this contract.

(ii) Any other such IT service or system (i.e., other than cloud computing) shall be subject to the security requirements specified elsewhere in this contract.

(2) For covered contractor information systems that are not part of an IT service or system operated on behalf of the Government and therefore are not subject to the security requirement specified at paragraph (b)(1) of this clause, the following security requirements apply:

(i) Except as provided in paragraph (b)(2)(ii) of this clause, the covered contractor information system shall be subject to the security requirements in National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (available via the internet at <https://src.nist.gov/publications/sp800>) in effect at the time the solicitation is issued or as authorized by the Contracting Officer.

(ii)(A) The Contractor shall implement NIST SP 800-171, as soon as practical, but not later than December 31, 2017. For all contracts awarded prior to October 1, 2017, the Contractor shall notify the DoD Chief Information Officer (CIO), via email at osd.dibcsia@mail.mil, within 30 days of contract award, of any security requirements specified by NIST SP 800-171 not implemented at the time of contract award.

(B) The Contractor shall submit requests to vary from NIST SP 800-171 in writing to the Contracting Officer, for consideration by the DoD CIO. The Contractor need not implement any security requirement adjudicated by an authorized representative of the DoD CIO to be nonapplicable or to have an alternative, but equally effective, security measure that may be implemented in its place.

(C) If the DoD CIO has previously adjudicated the contractor's requests indicating that a requirement is not applicable or that an alternative security measure is equally effective, a copy of that approval shall be provided to the Contracting Officer when requesting its recognition under this contract.

(D) If the Contractor intends to use an external cloud service provider to store, process, or transmit any covered defense information in performance of this contract, the Contractor shall require and ensure that the cloud service provider meets security requirements equivalent to those established by the Government for the Federal Risk and Authorization Management Program (FedRAMP) Moderate baseline (<https://www.fedramp.gov/documents-templates/>) and that the cloud service provider complies with requirements in paragraphs (c) through (g) of this clause for cyber incident reporting, malicious software, media preservation and protection, access to additional information and equipment necessary for forensic analysis, and cyber incident damage assessment.

(3) Apply other information systems security measures when the Contractor reasonably determines that information systems security measures, in addition to those identified in paragraphs (b)(1) and (2) of this clause, may be required to provide adequate security in a dynamic environment or to accommodate special circumstances (e.g., medical devices) and any individual, isolated, or temporary deficiencies based on an assessed risk or vulnerability. These measures may be addressed in a system security plan.

(c) *Cyber incident reporting requirement.*

(1) When the Contractor discovers a cyber incident that affects a covered contractor information system or the covered defense information residing therein, or that affects the contractor's ability to perform the requirements of the contract that are designated as operationally critical support and identified in the contract, the Contractor shall-

(i) Conduct a review for evidence of compromise of covered defense information, including, but not limited to, identifying compromised computers, servers, specific data, and user accounts. This review shall also include analyzing covered contractor information system(s) that were part of the cyber incident, as well as other information systems on the Contractor's network(s), that may have been accessed as a result of the incident in order to identify compromised covered defense information, or that affect the Contractor's ability to provide operationally critical support; and

(ii) Rapidly report cyber incidents to DoD at <https://dibnet.dod.mil>.

(2) *Cyber incident report.* The cyber incident report shall be treated as information created by or for DoD and shall include, at a minimum, the required elements at <https://dibnet.dod.mil>.

(3) *Medium assurance certificate requirement.* In order to report cyber incidents in accordance with this clause, the Contractor or subcontractor shall have or acquire a DoD-approved medium assurance certificate to report cyber incidents. For information on obtaining a DoD-approved medium assurance certificate, see <https://public.cyber.mil/eca/>.

(d) *Malicious software.* When the Contractor or subcontractors discover and isolate malicious software in connection with a reported cyber incident, submit the malicious software to DoD Cyber Crime Center (DC3) in accordance with instructions provided by DC3 or the Contracting Officer. Do not send the malicious software to the Contracting Officer.

(e) *Media preservation and protection.* When a Contractor discovers a cyber incident has occurred, the Contractor shall preserve and protect images of all known affected information systems identified in paragraph (c)(1)(i) of this clause and all relevant monitoring/packet capture data for at least 90 days from the submission of the cyber incident report to allow DoD to request the media or decline interest.

(f) *Access to additional information or equipment necessary for forensic analysis.* Upon request by DoD, the Contractor shall provide DoD with access to additional information or equipment that is necessary to conduct a forensic analysis.

(g) *Cyber incident damage assessment activities.* If DoD elects to conduct a damage assessment, the Contracting Officer will request that the Contractor provide all of the damage assessment information gathered in accordance with paragraph (e) of this clause.

(h) *DoD safeguarding and use of contractor attributional/proprietary information.* The Government shall protect against the unauthorized use or release of information obtained from the contractor (or derived from information obtained from the contractor) under this clause that includes contractor attributional/proprietary information, including such information submitted in accordance with paragraph (c). To the maximum extent practicable, the Contractor shall identify and mark attributional/proprietary information. In making an authorized release of such information, the Government will implement appropriate procedures to minimize the contractor attributional/proprietary information that is included in such authorized release, seeking to include only that information that is necessary for the authorized purpose(s) for which the information is being released.

(i) *Use and release of contractor attributional/proprietary information not created by or for DoD.* Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is not created by or for DoD is authorized to be released outside of DoD-

- (1) To entities with missions that may be affected by such information;
- (2) To entities that may be called upon to assist in the diagnosis, detection, or mitigation of cyber incidents;
- (3) To Government entities that conduct counterintelligence or law enforcement investigations;

(4) For national security purposes, including cyber situational awareness and defense purposes (including with Defense Industrial Base (DIB) participants in the program at 32 CFR part 236); or

(5) To a support services contractor ("recipient") that is directly supporting Government activities under a contract that includes the clause at 252.204-7009, Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.

(j) *Use and release of contractor attributional/proprietary information created by or for DoD.* Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is created by or for DoD (including the information submitted pursuant to paragraph (c) of this clause) is authorized to be used and released outside of DoD for purposes and activities authorized by paragraph (i) of this clause, and for any other lawful Government purpose or activity, subject to all applicable statutory, regulatory, and policy based restrictions on the Government's use and release of such information.

(k) The Contractor shall conduct activities under this clause in accordance with applicable laws and regulations on the interception, monitoring, access, use, and disclosure of electronic communications and data.

(l) *Other safeguarding or reporting requirements.* The safeguarding and cyber incident reporting required by this clause in no way abrogates the Contractor's responsibility for other safeguarding or cyber incident reporting pertaining to its unclassified information systems as required by other applicable clauses of this contract, or as a result of other applicable U.S. Government statutory or regulatory requirements.

(m) *Subcontracts.* The Contractor shall-

(1) Include this clause, including this paragraph (m), in subcontracts, or similar contractual instruments, for operationally critical support, or for which subcontract performance will involve covered defense information, including subcontracts for commercial products or commercial services, without alteration, except to identify the parties. The Contractor shall determine if the information required for subcontractor performance retains its identity as covered defense information and will require protection under this clause, and, if necessary, consult with the Contracting Officer; and

(2) Require subcontractors to-

(i) Notify the prime Contractor (or next higher-tier subcontractor) when submitting a request to vary from a NIST SP 800-171 security requirement to the Contracting Officer, in accordance with paragraph (b)(2)(ii)(B) of this clause; and

(ii) Provide the incident report number, automatically assigned by DoD, to the prime Contractor (or next higher-tier subcontractor) as soon as practicable, when reporting a cyber incident to DoD as required in paragraph (c) of this clause.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

2 IN 1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>HQ0871</u>
Issue By DoDAAC	<u>M00264</u>
Admin DoDAAC	<u>M00264</u>
Inspect By DoDAAC	<u>TBD</u>
Ship To Code	<u>TBD</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>TBD</u>

Service Acceptor (DoDAAC)	<u>TBD</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

=====

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations.	Feb 2026		
52.232-1	Payments.	Apr 1984		
52.232-25	Prompt Payment.	Jan 2017		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.240-91	Security Prohibitions and Exclusions.	Feb 2026		
52.243-1	Changes-Fixed Price.	Feb 2026		
52.243-1	Changes-Fixed Price. (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Feb 2026		
52.247-34	F.o.b. Destination.	Jan 1991		
52.249-1	Termination for Convenience of the Government (Fixed-Price) (Short Form).	Apr 1984		
52.232-11	Extras.	Apr 1984		
52.202-1	Definitions.	Jun 2020		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	Jun 2020	Alternate I	Nov 2021
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.224-1	Privacy Act Notification.	Apr 1984		
52.224-2	Privacy Act.	Apr 1984		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.242-13	Bankruptcy.	Jul 1995		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		
252.219-7011	Notification to Delay Performance.	Jun 1998		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.227-7020	Rights in Special Works.	Jun 1995		
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished	Jan 2025		
252.227-7027	Deferred Ordering of Technical Data or Computer Software.	Apr 1988		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024

252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.227-7990	Technical Data--Commercial Products and Commercial Services. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7991	Rights in Bid or Proposal Information. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7996	Technical Data--Withholding of Payment. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7997	Validation of Asserted Restrictions. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026

FAR Clauses Incorporated by Full Text**52.252-2 Clauses Incorporated by Reference. (Feb 1998)**

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov> _____[Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any N/A[insert regulation name] (48 CFR N/A) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.217-8 Option to Extend Services. (Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days before the contract expires. [insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days days[*60 days unless a different number of days is inserted*] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months(months) (years).

(End of clause)

DFARS Clauses Incorporated by Full Text**252.201-7000 Contracting Officer's Representative. (Dec 1991)**

CONTRACTING OFFICER'S REPRESENTATIVE (DEC 1991)

(a) *Definition.* "Contracting officer's representative" means an individual designated in accordance with subsection 201.602-2 of the Defense Federal Acquisition Regulation Supplement and authorized in writing by the contracting officer to perform specific technical or administrative functions.

(b) If the Contracting Officer designates a contracting officer's representative (COR), the Contractor will receive a copy of the written designation. It will specify the extent of the COR's authority to act on behalf of the contracting officer. The COR is not authorized to make any commitments or changes that will affect price, quality, quantity, delivery, or any other term or condition of the contract.

(End of clause)

252.227-7998 Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services. (DEVIATION 2026-O0036) (Feb 2026) Deviation 2026-O0036 (Feb 2026)

**RIGHTS IN TECHNICAL DATA, COMPUTER SOFTWARE, AND
COMPUTER SOFTWARE DOCUMENTATION--
OTHER THAN COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES
(DEVIATION 2026-O0036) (FEB 2026)**

(a) *Definitions.* As used in this clause--

"Commercial computer software" means software developed or regularly used for nongovernmental purposes which--

- (1) Has been sold, leased, or licensed to the public;
- (2) Has been offered for sale, lease, or license to the public;
- (3) Has not been offered, sold, leased, or licensed to the public but will be available for commercial sale, lease, or license in time to satisfy the delivery requirements of this contract; or
- (4) Satisfies a criterion expressed in paragraph (1), (2), or (3) of this definition and would require only minor modification to meet the requirements of this contract.

"Computer database" means a collection of data recorded in a form capable of being processed by a computer. The term does not include computer software.

"Computer program" means a set of instructions, rules, or routines recorded in a form that is capable of causing a computer to perform a specific operation or series of operations.

"Computer software" means computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae and related material that would enable the software to be reproduced, recreated, or recompiled. Computer software does not include computer databases or computer software documentation.

"Computer software documentation" means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

"Covered Government support contractor" means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or technical assistance directly to the Government in support of the Government's management and oversight of a program or effort, rather than to directly furnish an end item or service to accomplish a program or effort, provided that the contractor--

- (1) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and
- (2) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

"Detailed manufacturing or process data" means technical data that describe the steps, sequences, and conditions of manufacturing, processing or assembly used by the manufacturer to produce an item or component or to perform a process.

"Developed" means--

(1) (Applicable to technical data other than computer software documentation.) An item, component, or process exists and is workable. Thus, the item or component must have been constructed or the process practiced. Workability is generally established when the item, component, or process has been analyzed or tested sufficiently to demonstrate to reasonable people skilled in the applicable art that there is a high probability that it will operate as intended. Whether, how much, and what type of analysis or testing is required to establish workability depends on the nature of the item, component, or process, and the state of the art. To be considered "developed," the item, component, or process need not be at the stage where it could be offered for sale or sold on the commercial market, nor must the item, component, or process be actually reduced to practice within the meaning of Title 35 of the United States Code;

(2) A computer program has been successfully operated in a computer and tested to the extent sufficient to demonstrate to reasonable persons skilled in the art that the program can reasonably be expected to perform its intended purpose;

(3) Computer software, other than computer programs, has been tested or analyzed to the extent sufficient to demonstrate to reasonable persons skilled in the art that the software can reasonably be expected to perform its intended purpose; or

(4) Computer software documentation the contractor must deliver under a contract has been written, in any medium, in sufficient detail to comply with requirements under that contract.

"Developed exclusively at private expense" means development was accomplished entirely with costs charged to indirect cost pools, costs not allocated to a Government contract, or any combination thereof.

(1) Private expense determinations should be made at the lowest practicable level.

(2) Under fixed-price contracts, when total costs are greater than the firm-fixed-price or ceiling price of the contract, the additional development costs necessary to complete development shall not be considered when determining whether development was at Government, private, or mixed expense.

"Developed exclusively with Government funds" means development was not accomplished exclusively or partially at private expense.

"Developed with mixed funding" means development was accomplished partially with costs charged to indirect cost pools and/or costs not allocated to a government contract, and partially with costs charged directly to a government contract.

"Form, fit, and function data" means technical data that describe the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

"Generated" means, with regard to technical data or computer software, first created in the performance of this contract.

"Government purpose" means any activity in which the United States Government is a party, including cooperative agreements with international or multi-national defense organizations, or sales or transfers by the United States Government to foreign governments or international organizations. Government purposes include competitive procurement, but do not include the rights to use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation for commercial purposes or authorize others to do so.

"Government purpose rights" means the rights to--

(1) Use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation within the Government without restriction; and

(2) Release or disclose technical data, computer software, or computer software documentation outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose that data or software for United States Government purposes.

"Limited rights" means the rights to use, modify, reproduce, release, perform, display, or disclose technical data, in whole or in part, within the Government. The Government may not, without the written permission of the party asserting limited rights, release or disclose the technical data outside the Government, use the technical data for manufacture, or authorize the technical data to be used by another party, except that the Government may reproduce, release, or disclose such data or authorize the use or reproduction of the data by persons outside the Government if--

(1) The reproduction, release, disclosure, or use is--

(i) Necessary for emergency repair and overhaul; or

(ii) A release or disclosure to--

(A) A covered Government support contractor in performance of its covered Government support contract for use, modification, reproduction, performance, display, or release or disclosure to a person authorized to receive limited rights technical data; or

(B) A foreign government, of technical data other than detailed manufacturing or process data, when use of such data by the foreign government is in the interest of the Government and is required for evaluational or informational purposes;

(2) The recipient of the technical data is subject to a prohibition on the further reproduction, release, disclosure, or use of the technical data; and

(3) The contractor or subcontractor asserting the restriction is notified of such reproduction, release, disclosure, or use.

"Minor modification" means a modification that does not significantly alter the nongovernmental function or purpose of the software or is of the type customarily provided in the commercial marketplace.

"Other than commercial computer software" means software that does not qualify as commercial computer software under the definition of "commercial computer software" of this clause.

"Restricted rights" apply only to other than commercial computer software and mean the Government's rights to--

(1) Use a computer program with one computer at one time. The program may not be accessed by more than one terminal or central processing unit or time shared unless otherwise permitted by this contract;

(2) Transfer a computer program to another Government agency without the further permission of the Contractor if the transferor destroys all copies of the program and related computer software documentation in its possession and notifies the licensor of the transfer. Transferred programs remain subject to the provisions of this clause;

(3) Make a reasonable number of copies of the computer software required for the purposes of safekeeping (archive), backup, modification, or other activities authorized in paragraphs (1), (2), (4) and (5) of this definition;

(4) Modify computer software provided that the Government may--

(i) Use the modified software only as provided in paragraphs (1) and (3) of this definition; and

(ii) Not release or disclose the modified software except as provided in paragraphs (2) and (5) of this clause;

(5) Use, modify, reproduce, perform, display, or release or disclose the computer software, and permit contractors, subcontractors, or covered Government support contractors to do so, for purposes set forth in subparagraph (i) of this paragraph, subject to the conditions set forth in subparagraphs (ii) of this paragraph:

(i)(A) In performance of service contracts (see FAR 37.101), to diagnose and correct deficiencies, to modify the software to enable a computer program to be combined with, adapted to, or merged with other computer programs, or when necessary to respond to urgent tactical situations, provided that the Government notifies the party which has granted restricted rights that any such release or disclosure to particular contractors or subcontractors was made;

(B) To perform emergency repairs or overhaul of items or components procured under this or a related contract, when necessary to perform such repairs or overhaul; or

(C) For the management and oversight of a program or effort by a person authorized to receive restricted rights computer software, including in the performance of covered Government support contracts.

(ii)(A) Any contractor, subcontractor, or covered Government support contractor receiving access to the software for the purposes of subparagraphs (i), (ii), or (iii) of this paragraph shall be subject to the use and nondisclosure agreement at 227.7103-7 or be performing a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends;

(B) The Government must not permit any recipient of the software under this paragraph to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (4) of this definition, for any other purpose; and

(C) Any use, modification, reproduction, performance, display, release, or disclosure of the computer software under this paragraph remains subject to the limitations in paragraphs (1) through (4) of this definition.

"Small Business Innovation Research/Small Business Technology Transfer (SBIR/STTR) data" means all technical data or computer software developed or generated in the performance of a phase I, II, or III SBIR/STTR contract or subcontract.

"Technical data" means recorded information, regardless of the form or method of the recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or financial, administrative, cost or pricing, or management information, or information incidental to contract administration.

"Unlimited rights" means rights to use, modify, reproduce, perform, display, release, or disclose technical data, computer software, or computer software documentation in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so.

(b) *Applicability.* (1) Except as provided in paragraph (b)(2) of this clause--

(i) This clause governs all technical data related to other than commercial products or commercial services or to any portion of a commercial product or commercial service that was developed in any part at Government expense;

(ii) This clause governs all other than commercial computer software or other than commercial computer software documentation; and

(iii) The clause at DFARS 252.227-7990, Technical Data--Commercial Products and Commercial Services, governs the technical data related to any portion of a commercial product or commercial service that was developed exclusively at private expense.

(2) The clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, governs technical data that are SBIR/STTR data.

(c) *Rights in technical data and computer software.* The Contractor grants or shall obtain for the Government the following royalty free, worldwide, nonexclusive, irrevocable license rights:

(1) *Unlimited rights*. The Government shall have unlimited rights in technical data, computer software, or computer software documentation that are--

(i) Data related to an item, component, or process which has been or will be developed exclusively with Government funds;

(ii) Studies, analyses, test data, or similar data produced for this contract, when the study, analysis, test, or similar work was specified as an element of performance;

(iii) Technical data created exclusively with Government funds in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes;

(iv) Form, fit, and function data;

(v) Technical data necessary for installation, operation, maintenance, or training purposes (other than detailed manufacturing or process data);

(vi) Government-furnished corrections or changes to--

(A) Technical data furnished to the Contractor by the Government; or

(B) Computer software or computer software documentation;

(vii) Data, computer software, or computer software documentation that is publicly available or previously released or disclosed by the Contractor or subcontractor without restrictions on further use, release or disclosure, other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the technical data to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(viii) Data, computer software, or computer software documentation in which the Government has obtained unlimited rights under another Government contract or as a result of negotiations;

(ix) Data furnished to the Government, under this or any other Government contract or subcontract, with--

(A) Government purpose license rights or limited rights and the restrictive condition(s) has/have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such data for commercial purposes has expired; or

(x) Computer software developed exclusively with Government funds;

(xi) Computer software documentation the contractor must deliver under this contract; or

(xvii) Computer software or computer software documentation furnished to the Government, under this or any other Government contract or subcontract with--

(A) Restricted rights in computer software, limited rights in technical data, or government purpose license rights and the restrictive conditions have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such software or documentation for commercial purposes has expired.

(2) *Government purpose rights*. (i) The Government shall have government purpose rights for a 5-year period, or such other period as may be negotiated, in technical data or computer software--

(A) Related to items, components, or processes developed with mixed funding except when the Government is entitled to unlimited rights in such data or software as provided in paragraphs (c)(1)(ii), (c)(1)(iv) through (c)(1)(ix), and (c)(1)(xii) through (c)(1)(x)(v)(i) of this clause; or

(B) Created with mixed funding in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The 5-year period, or such other period as may have been negotiated, shall begin upon execution of the contract, subcontract, letter contract (or similar contractual instrument), contract modification, or option exercise that required development of the items, components, or processes, development of the computer software, or creation of the data described in paragraph (c)(2)(i)(B) of this clause. Upon expiration of the 5-year or other negotiated period, the Government shall have unlimited rights in the technical data or computer software.

(iii) The Government will not release or disclose technical data or computer software in which it has government purpose rights unless--

(A) Prior to release or disclosure, the intended recipient completes the nondisclosure agreement at DFARS 227.7103-7; or

(B) The recipient is a Government contractor receiving access to the data or software for performance of a Government contract that contains the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(iv) The Contractor has the exclusive right, including the right to license others, to use technical data or computer software in which the Government has obtained government purpose rights under this contract for any commercial purpose during the time period specified in the government purpose rights legend prescribed in paragraph (g)(3) of this clause.

(3) *Limited rights.* (i) Except as provided in paragraphs (c)(1)(ii) and (c)(1)(iv) through (c)(1)(ix) of this clause, the Government shall have limited rights in technical data--

(A) Related to items, components, or processes developed exclusively at private expense and marked with the limited rights legend prescribed in paragraph (g) of this clause; or

(B) Created exclusively at private expense in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The Government will require a recipient of limited rights data for emergency repair or overhaul to destroy the data and all copies in its possession promptly following completion of the emergency repair/overhaul and to notify the Contractor that the data have been destroyed.

(iii) The Contractor, its subcontractors, and suppliers are not required to provide the Government additional rights to use, modify, reproduce, release, perform, display, or disclose technical data furnished to the Government with limited rights. However, if the Government desires to obtain additional rights in technical data in which it has limited rights, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all technical data for which the Government has been granted additional rights and specifies those additional rights.

(iv) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose limited rights data to covered Government support contractors;

(B) The Government will notify the contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the limited rights legend may--

(1) Require each covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding use of the data; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the limited rights data as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(4) *Restricted rights.* (i) The Government shall have restricted rights in other than commercial computer software the contractor must deliver, or that is otherwise provided, to the Government under this contract that was developed exclusively at private expense.

(ii) The Contractor, its subcontractors, or suppliers are not required to provide the Government additional rights in other than commercial computer software delivered or otherwise provided to the Government with restricted rights. However, if the Government desires to obtain additional rights in such software, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all other than commercial computer software for which the Government has been granted additional rights and specifies those additional rights.

(iii) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose restricted rights computer software to covered Government support contractors;

(B) The Government will notify the Contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the restricted rights legend may--

(1) Require each such covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding the use of the software; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the restricted rights software as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(5) *Specifically negotiated license rights.* The standard license rights granted to the Government under paragraphs (c)(1) through (c)(4) of this clause, including the period during which the Government shall have government purpose rights in technical data or computer software, may be modified by mutual agreement but shall not provide the Government lesser rights than provided in the definition of "limited rights" or restricted rights" of this clause. Any negotiated rights shall be identified in a license agreement made part of this contract.

(6) *Prior government rights.* Technical data or computer software that will be delivered, furnished, or otherwise provided to the Government under this contract, in which the Government has previously obtained rights shall be delivered, furnished, or provided with the preexisting rights, unless--

(i) The parties have agreed otherwise; or

(ii) The restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose the data or software have expired or no longer apply.

(7) *Release from liability.* The Contractor agrees to release the Government from liability for any authorized release or disclosure of technical data or computer software made in accordance with this clause or any negotiated license agreement. This release from liability for the Government also applies to releases or disclosures made by a third party who received the data or software from an authorized recipient. For any unauthorized use or disclosure by such third parties of technical data or computer software marked with restrictive legends, the Contractor agrees to seek relief solely from that party.

(d) *Contractor rights in technical data and computer software.* The Contractor retains all rights not granted to the Government.

(e) *Third party copyrighted data and software.* The Contractor shall not, without the written approval of the Contracting Officer, incorporate any copyrighted data or software in the technical data or computer software the contractor must deliver under this contract unless the Contractor is the copyright owner or has obtained license rights for the Government of the appropriate scope set forth in paragraph (c) of this clause, and has affixed a statement of the license or licenses obtained on behalf of the Government and other persons to the data transmittal document.

(f) *Identification and delivery of data to be delivered with restrictions on use, release, or disclosure.* (1) This paragraph does not apply to restrictions based solely on copyright.

(2) Except as provided in paragraph (f)(3) of this clause, technical data or computer software that the Contractor asserts should be furnished to the Government with restrictions on use, release, or disclosure are identified in an attachment to this contract (the Attachment). The Contractor shall not deliver any data or software with restrictive markings unless the data are listed on the Attachment.

(3) In addition to the assertions made in the Attachment, the Contractor may identify other assertions after award when based on new information or inadvertent omissions unless the inadvertent omissions would have materially affected the source selection decision. The Contractor shall submit such identification and assertions to the Contracting Officer as soon as practicable prior to the scheduled date for delivery of the data or software, in the following format, and signed by an official authorized to contractually obligate the Contractor:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software			
The Contractor asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted--			
Technical Data or Computer Software to be Furnished With Restrictions ¹	Basis for Assertion ²	Asserted Rights Category ³	Name of Person Asserting Restrictions ⁴
(LIST)	(LIST)	(LIST)	(LIST)
==	==	==	==

¹ If the assertion is applicable to items, components or processes developed at private expense, identify both the data and each such item, component, or process.

² Generally, the development of an item, component, process, or computer software at private expense, either exclusively or partially, is the only basis for asserting restrictions on the Government's rights to use, release, or disclose computer software or technical data related to such items, components, or processes. Indicate whether development was exclusively or partially at private expense. If development was not at private expense, enter the specific reason for asserting that the Government's rights should be restricted.

³ Enter asserted rights category (e.g., rights in SBIR/STTR data generated under another contract, limited rights, restricted rights, or government purpose rights under this or a prior contract, or specifically negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(4) When requested by the Contracting Officer, the Contractor shall provide sufficient information to enable the Contracting Officer to evaluate the Contractor's assertions. The Contracting Officer reserves the right to add the Contractor's assertions to the Attachment and validate any listed assertion, at a later date, in accordance with the procedures in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract.

(g) *Marking requirements.* The Contractor, and its subcontractors or suppliers, may only assert restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software the Contractor must deliver under this contract by marking the deliverable data or software subject to restriction. Except as provided in paragraph (g)(7) of this clause, only the following legends are authorized under this contract: the government purpose rights legend at paragraph (g)(3) of this clause; the limited rights legend at paragraph (g)(4) of this clause; the restricted rights legend at paragraph (g)(5) of this clause; the special license rights legend at paragraph (g)(6) of this clause; and a notice of copyright as prescribed under 17 U.S.C. 401 or 402.

(1) *General marking instructions.* The Contractor, or its subcontractors or suppliers, shall conspicuously and legibly mark the appropriate legend on all technical data or computer software that qualify for such markings. The authorized legends shall be placed on the transmittal document or storage container and, for printed material, each page of the printed material containing technical data or computer software for which restrictions are asserted. When only portions of a page of printed material are subject to the asserted restrictions, such portions shall be identified by circling, underscoring, with a note, or other appropriate identifier. Technical data or computer software transmitted directly from one computer or computer terminal to another shall contain a notice of asserted restrictions. For software that will or might be used in combat or situations that simulate combat conditions, the contractor shall not insert instructions that interfere with or delay the operation of computer software in order to display a restrictive rights legend or other license statement at any time prior to or during use of the computer software, or otherwise cause such interference or delay, unless the Contracting Officer's written permission to deliver such software has been obtained prior to delivery. Reproductions of technical data or computer software or any portions thereof subject to asserted restrictions shall also reproduce the asserted restrictions.

(2) *Omitted markings.* (i) Technical data or computer software delivered or otherwise provided under this contract without restrictive markings will be presumed to have been delivered with unlimited rights. To the extent practicable, if the Contractor has requested permission (see paragraph (g)(2)(ii) of this clause) to correct an inadvertent omission of markings, the Contracting Officer will not release or disclose the technical data or computer software pending evaluation of the request.

(ii) The Contractor may request permission to have conforming and justified restrictive markings placed on unmarked technical data or computer software at its expense. The request must be received by the Contracting Officer within 6 months following the furnishing or delivery of such technical data or computer software, or any extension of that time approved by the Contracting Officer. The Contractor shall--

(A) Identify the technical data or computer software that should have been marked;

(B) Demonstrate that the omission of the marking was inadvertent, the proposed marking is justified and conforms with the requirements for the marking of technical data or computer software contained in this clause; and

(C) Acknowledge, in writing, that the Government has no liability with respect to any disclosure, reproduction, or use of the technical data or computer software made prior to the addition of the marking or resulting from the omission of the marking.

(3) *Government purpose rights markings.* Technical data or computer software delivered or otherwise furnished to the Government with government purpose rights shall be marked as follows:

GOVERNMENT PURPOSE RIGHTS

Contract Number _____
Contractor Name _____
Contractor Address _____
Expiration Date _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data or computer software are restricted by the government purpose rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. No restrictions apply after the expiration date shown above. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(4) *Limited rights markings.* Data delivered or otherwise furnished to the Government with limited rights shall be marked as follows:

LIMITED RIGHTS

Contract Number _____
Contractor Name _____
Contractor Address _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data are restricted by the limited rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such data must promptly notify the above named Contractor.

(End of legend)

(5) Restricted rights markings. Software delivered or otherwise furnished to the Government with restricted rights shall be marked as follows:

RESTRICTED RIGHTS

Contract Number _____

Contractor Name _____

Contractor Address _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by the restricted rights license in the DFARS 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause contained in the above identified contract. Any reproduction of computer software or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such software must promptly notify the above named Contractor.

(End of legend)

(6) Special license rights markings. (i) Technical data or computer software in which the Government's rights stem from a specifically negotiated license shall be marked as follows:

SPECIAL LICENSE RIGHTS

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these data or software are restricted by Contract Number [Insert contract number] _____, License Number [Insert license identifier] _____. Any reproduction of technical data, computer software, or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(ii) For purposes of this clause, special licenses do not include government purpose license rights acquired under a prior contract (see paragraph (c)(5) of this clause).

(7) *Preexisting data or software markings.* If the terms of a prior contract or license permitted the Contractor to restrict the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software deliverable under this contract, and those restrictions are still applicable, the Contractor may mark such data or software with the appropriate restrictive legend for which the data or software qualified under the prior contract or license. The Contractor shall follow the marking procedures in paragraph (g)(1) of this clause.

(h) *Contractor procedures and records.* Throughout performance of this contract, the Contractor and its subcontractors or suppliers that will deliver technical data or computer software with other than unlimited rights, shall--

(1) Have, maintain, and follow written procedures sufficient to assure that restrictive markings are used only when authorized by the terms of this clause; and

(2) Maintain records sufficient to justify the validity of any restrictive markings on technical data or computer software delivered under this contract.

(i) *Removal of unjustified and nonconforming markings--(1) Unjustified technical data markings.* The rights and obligations of the parties regarding the validation of restrictive markings on technical data or computer software delivered or to be delivered under this contract are contained in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. Notwithstanding any provision of this contract concerning inspection and acceptance, the Government may ignore or, at the Contractor's expense, correct or strike a marking if, in accordance with the procedures in the Validation of Asserted Restrictions clause of this contract, a restrictive marking is determined to be unjustified.

(2) *Nonconforming technical data or computer software markings.* A nonconforming marking is a marking placed on technical data or computer software delivered or otherwise furnished to the Government under this contract that is not in the format authorized by this contract. Correction of nonconforming markings is not subject to the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. If the Contracting Officer notifies the Contractor of a nonconforming marking and the Contractor fails to remove or correct such marking within 60 days, the Government may ignore or, at the Contractor's expense, remove or correct any nonconforming marking.

(j) *Relation to patents.* Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government under any patent.

(k) *Limitation on charges for rights in technical data, computer software, or computer software documentation.* (1) The Contractor shall not charge to this contract any cost, including, but not limited to, license fees, royalties, or similar charges, for rights in technical data, computer software, or computer software documentation the Contractor must deliver under this contract when--

(i) The Government has acquired, by any means, the same or greater rights in the data or software; or

(ii) The data or software are available to the public without restrictions.

(2) The limitation in paragraph (k)(1) of this clause--

(i) Includes costs charged by a subcontractor or supplier, at any tier, or costs incurred by the Contractor to acquire rights in subcontractor or supplier technical data, computer software, or computer software documentation, if the subcontractor or supplier has been paid for such rights under any other Government contract or under a license conveying the rights to the Government; and

(ii) Does not include the reasonable costs of reproducing, handling, or mailing the documents or other media in which the technical data, computer software, or computer software documentation will be delivered.

(l) *Applicability to subcontractors or suppliers.* (1) The Contractor shall ensure that the rights afforded its subcontractors and suppliers under 10 U.S.C. 3771-3775, 10 U.S.C. 3781-3786, and the identification, assertion, and delivery processes of paragraph (f) of this clause are recognized and protected.

(2)(i) Except as provided in paragraph (l)(2)(ii) of this clause, the Contractor shall include this clause in any subcontract or contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This requirement applies to technical data or software related to other than commercial products or commercial services, or related to commercial products or commercial services developed in any part with Government funds. The Contractor shall also require its subcontractors and suppliers to include this clause, without alteration except to identify the parties, in any contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This clause will govern the technical data related to an other than commercial product or service or to any portion of a commercial product or commercial service that was developed in any part at Government expense, and the clause at 252.227-7990 will govern the technical data related to any portion of a commercial item that was developed exclusively at private expense. No other clause shall be used to expand or reduce the Government's, the Contractor's, or a higher-tier subcontractor's or supplier's rights in a subcontractor's or supplier's technical data, computer software, or computer software documentation.

(ii) The Contractor shall use the clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, to govern technical data, computer software, or computer software documentation that is SBIR/STTR data.

(3) Technical data, computer software, or computer software documentation a subcontractor or supplier must deliver shall normally be delivered to the next higher-tier contractor, subcontractor, or supplier. However, when there is a requirement in the prime contract for data which may be submitted with other than unlimited rights by a subcontractor or supplier, then said subcontractor or supplier may fulfill its requirement by submitting such data or software directly to the Government, rather than through a higher-tier contractor, subcontractor, or supplier.

(4) The Contractor and higher-tier subcontractors or suppliers shall not use the award of a contract as economic leverage to obtain rights in technical data, computer software, or computer software documentation from their subcontractors or suppliers.

(5) In no event shall the Contractor use its obligation to recognize and protect subcontractor or supplier rights in technical data, computer software, or computer software documentation as an excuse for failing to satisfy its contractual obligations to the Government.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
02	Attachment 2 Past Performance Questionnaire		Attachment 2 Past Performance Questionnaire M00264-26-R-0009	10 Feb 2026
03	Attachment 3 Assessor Past Performance Questionnaire		Attachment 3 Assessor Past Performance Questionnaire	10 Feb 2026
04	Attachment 4 M00264-26-R-0009 Pricing Sheet TECOM HPB		Attachment 4 TECOM HPB Pricing Sheet	10 Feb 2026
05	Attachment 1 PWS for HPB 03312026	Performance Work Statement	Attachment 1 PWS for HPB	31 Mar 2026

Solicitation Provisions

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.204-7000	Disclosure of Information.	Oct 2016		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

DFARS Clauses Incorporated by Full Text

252.203-7005 Representation Relating to Compensation of Former DoD Officials. (Sep 2022)

REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022)

(a) *Definition.* "Covered DoD official" is defined in the clause at 252.203-7000, Requirements Relating to Compensation of Former DoD Officials.

(b) By submission of this offer, the Offeror represents, to the best of its knowledge and belief, that all covered DoD officials employed by or otherwise receiving compensation from the Offeror, and who are expected to undertake activities on behalf of the Offeror for any resulting contract, are presently in compliance with all applicable post-employment restrictions, including those contained in 18 U.S.C. 207, 41 U.S.C. 2101-2107, 5 CFR part 2641, section 1045 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), and Federal Acquisition Regulation 3.104-2.

(End of provision)

252.204-7008 Compliance with Safeguarding Covered Defense Information Controls. (Oct 2016)

COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016)

(a) *Definitions.* As used in this provision-

"Controlled technical information," "covered contractor information system," "covered defense information," "cyber incident," "information system," and "technical information" are defined in clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause 252.204-7012, shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see 252.204-7012(b)(2)-

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (see <http://dx.doi.org/10.6028/NIST.SP.800-171>) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2)(i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of-

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)**PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)**

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☒ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)**COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)**

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☒ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.215-7008 Only One Offer.**(Dec 2022)**

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable N/A[U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

52.212-1 ADDENDUM- INSTRUCTIONS TO OFFERORS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

1. Multiple Offers

1.1 The Marine Corps Installations National Capital Region (MCINCR) Regional Contracting Office (RCO) does not encourage offerors to submit multiple offers presenting alternative terms and conditions for satisfying the requirements of this solicitation.

2. Overview

2.1 The Government intends to award a single Firm Fixed Price (FFP) contract for a 7-month base period and four 12-month option periods as a result of the solicitation. The Government may extend the term of the contract not to exceed six months, under FAR clause 52.217-8.

2.2 Each offeror shall submit an offer that clearly and concisely describes its response to the requirements of the solicitation. Use of general or vague statements such as "standard procedures will be used" will not satisfy this requirement. Unnecessary elaboration or presentations beyond what is sufficient to present a complete and effective solution are not desired and may be construed as a lack of understanding of the requirement. Elaborate artwork and expensive visual or other presentation aids are neither necessary nor desired.

3. Guidance

3.1 Offerors must submit a proposal and other information in strict accordance with these instructions. Failure to do so may result in the Offeror's submission being determined unacceptable and ineligible for award. Each Offeror's submission will be screened by the Contracting Officer (KO) upon receipt to ensure completeness and compliance with the instructions contained in the Request for Proposal (RFP).

3.2 The contract award shall be made in accordance with the following information contained in the RFP. The Government will evaluate the Offeror's compliance with the instructions contained in the RFP, including the instructions and other text contained here in the Addendum to FAR 52.212-1. The Contracting Officer will remove from competition those proposals that fail to comply with the solicitation, including the instructions and other text contained here. Each offeror must submit an offer including information pertaining to Technical Approach, Past Performance, and Price. The Government will evaluate each offeror's understanding of the contract and Performance Work Statement (PWS) requirements, and each offeror's ability to perform the work on the basis of its proposal.

3.3 The Government reserves the right to incorporate all or part of the successful Offeror's proposal into any contract awarded pursuant to this RFP.

3.4 The purpose of this procurement is to obtain contractor support in providing services described in the PWS.

4. Confidential Information

4.1 The Freedom of Information Act (FOIA) and its amendments have resulted in an increasing number of requests from outside the Government for copies of contract qualifications and offers submitted to federal agencies. If a Offeror's submissions contain information that he/she believes should be withheld from such requestors under FOIA on the grounds that they contain "trade secrets and commercial or financial information" (5 USC 552(b) (4)), the offeror should mark its submissions in the following manner:

4.2 The following notice should be placed on the title page: "Some parts of this document, as identified on individual pages, are considered by the submitter to be privileged or confidential trade secrets or commercial or financial information not subject to mandatory disclosure under the Freedom of Information Act. Material considered privileged or confidential on such grounds is contained on page(s) _____."

4.3 Each individual item considered privileged or confidential under FOIA should be marked with the following notice: "The data or information is considered confidential or privileged and is not subject to mandatory disclosure under the Freedom of Information Act."

5. Submission of Questions and Offers

5.1 Questions

5.1.1 All questions must be received by **7 April 2026 at 10:00AM EST**. All questions shall be submitted via email to Shaye Nelson, Contract Specialist, at shaye.nelson@usmc.mil and Christa Eggleston-Scott, KO/Team Lead at christa.eggleston-sc@usmc.mil.

Please submit questions in the table format below via Microsoft Excel.

Solicitation Section	Comment/Question

Should any questions be received after the date stated above, the Government reserves the right not to provide an answer. If, however, in the Government's opinion, the question(s) cites an issue of significant importance, the Government may provide written responses.

PLEASE NOTE: The subject line for your email should read "TECOM HPB RFP M00264-26-R-0009-Questions".

5.1.1.2 Note: Due to the firewall at Quantico, please be advised that it is the Offeror's responsibility to ensure all electronic submittals of questions are received by the KO in the timeframe given above.

5.2 Offers

5.2.1 Offers will be accepted via e-mail only. Offers must be received prior to the date and time on **Block 8** to Shaye Nelson, Contract Specialist, at shaye.nelson@usmc.mil and Christa Eggleston-Scott, KO/Team Lead at christa.eggleston-sc@usmc.mil.

PLEASE NOTE: The subject line for your email should read "TECOM HPB RFP M00264-26-R-0009-Offer".

6. Offer Format

Contractors shall submit offers via email.

6.1 In order to maximize efficiency and minimize the time for offer evaluation, it is required that all Offerors submit their proposals in accordance with the format and content specified. All offers shall meet the following format requirements:

- Page Setup 8.5" x 11" paper size
- 11 x 14 inch for foldouts, matrixes, Work Breakdown Structure
- Single-spaced typed lines
- 1-inch margins on all sides
- Page numbering: Pages shall be numbered consecutively within each volume showing volume and page. For example, page 9 of Volume 1 would be numbered 1.9 and page 10 of Volume 2 would be numbered 2.10,
- No greater than 12-point font, Times New Roman for text material.
- Graphs, drawings, tables, and "Screen Shots" of pictures depicting an element(s) of the offered approach must be clear and legible; use no less than 10-point font Times New Roman and no more than 12 pt. font Times New Roman
- Headers/footers- ensure the company name and RFP number is included on each page
- Each page of the proposal shall include the following footer: "Source Selection Information - See FAR 2.101 and 3.104."
- Microsoft Office compatible files or Adobe Acrobat are required.

The offer shall be prepared so that, when printed, the offer meets the format requirements. The offer submitted via email shall be compatible with and capable of being opened in Microsoft Office 2010 or earlier, or Adobe Acrobat. All documentation shall be provided in Microsoft Word format, except for the following exceptions: documents requiring signature shall be provided in PDF; supporting price information shall be provided in Microsoft Word and Excel format (completed pricing template and basis of estimates). All spreadsheets shall be in Microsoft Excel (MS Excel 2013 or earlier) format such that each mathematical equation is obvious. No fields shall be password protected.

Offerors are advised the Government may be unable to receive other types of electronic files (e.g., .zip files) or files in excess of 20 megabytes. To be timely, an electronic proposal must be received in its entirety in the designated email inbox by the due date and time for Proposal. An Email proposal that resides on a government server but has not appeared in the designated Email inbox by the due date and time for proposal submission will be considered late unless an exception at FAR 52.215-1(c)(3) applies.

Number of page limits required per volume is as follows:

Volume	Volume Title	Page Limit
1	Compliance Documentation	No limit

2	Factor 1: Technical Approach	50 pages
3	Factor 2: Past Performance	30 pages
4	Factor 3: Price	No limit

6.2 Offer Content

Each offer shall contain the following volumes/sections:

Volume 1: Compliance Documentation

Volume 2: Factor 1 - Technical Approach

Volume 3: Factor 2 - Past Performance

Volume 4: Factor 3 - Price

6.3 Volume 1 - Compliance Documentation

The offer shall comply with the following information:

6.3.1 Adherence to offer format and content.

6.3.2 Include a cover letter with the following information:

- 1) The RFP number.
- 2) Company Information. Provide the name, address, UEI number, CAGE Code, and telephone number of the offeror.
- 3) Authorized Personnel. Provide the name, title, telephone number, facsimile number, and e-mail address of the company /division point of contact that can obligate your company contractually. Also, identify those individuals authorized to negotiate with the Government.
- 4) "Remit to" address, if different than mailing address.
- 5) Acknowledgment of Amendments (if applicable).
- 6) Agreement with terms. A statement specifying the extent of agreement with all terms, conditions, and provisions included in the RFP. Offerors are to clearly detail any exceptions taken and the rationale for the exceptions taken to the RFP. Please note that exceptions taken to the RFP may render the offer unacceptable to the Government.
- 7) Identify any enclosures being transmitted.
- 8) State the length of offer validity (at least a minimum of 180 days).
- 9) Completed Standard Form (SF) 1449 of the Solicitation (Signed and dated). Failure to do so may lead to rejection of the offer.

10) A completed copy of all solicitation representations and certifications. If the offeror completed the representations and certifications in the System for Award Management (SAM), it shall include a statement stating its representations and certifications are up to date in SAM. Any representations and certification that are not available for completion within SAM must be submitted in this volume.

6.3.3 Organizational Conflict of Interest (OCI) Plan Submission: The offeror shall provide an affirmative statement that no OCIs exist or a detailed plan which mitigates existing or anticipated OCIs. If applicable, the offeror shall describe how the OCI Mitigation Plan was developed and the company's approach to avoiding, mitigating, or neutralizing any identified OCI risks. If an offeror determines that an actual or potential OCI does not exist, the offeror shall include a statement to that effect as part of its offer and does not need to submit an OCI Plan.

6.3.3.1 To facilitate resolution of any potential or actual OCIs, Offerors are encouraged to submit their OCI Plans in advance of the proposal submission due date. The OCI Mitigation Plan shall specifically address the OCI disclosures required in this section, and explain how the prime will fully avoid, neutralize, or mitigate any OCIs, as indicated in FAR 9.5. As part of its OCI Mitigation Plan, the Offeror must identify which contracts or subcontracts it will continue to support and those it intends to terminate or allow to lapse to eliminate any conflicts of interest. The OCI Mitigation Plan shall also address other OCI resolution and mitigation measures to include the divestment of business units.

6.4 Volume 2 - Technical Volume (Factor 1)

THIS VOLUME OF THE PROPOSAL SHALL NOT CONTAIN ANY PRICING/COST INFORMATION.

The Technical/Management Volume should be specific and complete. Pricing information shall not appear anywhere in the Technical Volume. Your responses will be evaluated against the technical/management factors defined in Addendum to 52.212-2, Evaluation- Commercial items. Using the instructions provided below, provide as specifically as possible the actual methodology you would use for accomplishing/satisfying these factors. All the requirements specified in the solicitation are mandatory. Do not merely reiterate the objectives or reformulate the requirements specified in the solicitation. Content of the Technical/Management volume shall adhere to Table 1 above and shall contain the following:

6.4.1 Factor 1 - Technical Approach

The Offeror must demonstrate and clearly articulate their capability to perform all of the tasks outlined in the PWS so as to provide continuous quality support through manning, communicating, recruiting, retaining, and the management of any subcontractors. The proposal shall provide a staffing solution demonstrating qualifications and capabilities with proposed labor mix/labor categories that will allow the contractor to meet or exceed all technical requirements in the PWS. The information must provide the evaluation panel with sufficient confidence that the Offeror has the capacity to support the PWS performance requirements and can execute a comprehensive approach that ensures quality performance and use of staff resources to meet PWS objectives to execute the intended strategy.

The offeror shall also provide a demonstrated management approach suitable to the services delineated in the PWS and consistent with its' technical approach. The management approach shall incorporate the techniques, processes, and their quality management procedures, controls, subcontractor management processes, and quality provisions necessary to execute the approach. Additionally, the offeror shall provide a process for identifying, recruiting, retaining, training, and replacing personnel with the required qualifications and capabilities.

6.5 Volume 3 - Factor 2 - Past Performance

6.5.1 Identify up to three recent, relevant contracts performed within five (5) years of the date of this RFP issuance. All information provided should be references the offeror considers relevant to the requirements of the solicitation. Offerors shall provide a detailed explanation demonstrating the relevance of the contracts or efforts to the requirements of the solicitation. **If subcontractor experience is provided as part of the three most relevant contracts or efforts, the subcontractor experience will be given weight relative to the scope, magnitude, and complexity of the aspects of the work under the solicitation that the subcontractor is proposed to perform.** Therefore, the offeror's proposal shall detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. If the Offeror has not had any Government contracts, then information on recent and relevant subcontracts and/or commercial contracts may be submitted. If the Offeror does not have recent and relevant past performance experience, then the Offeror must make an affirmative statement to this effect.

6.5.2 The offeror shall complete a "Past Performance Questionnaire (PPQ)" (Attachment 2) for each reference. For additional information regarding a particular reference beyond that which will fit on the form, the offeror may continue onto another sheet of paper.

6.5.3 The offeror shall complete an "Assessor Past Performance Questionnaire (APPQ)" (Attachment 3) for each reference submitted that does not have an official Contractor Performance Assessment Reporting System (CPARS) assessment. The form shall be completed by an Assessor (PM, COR, etc.) responsible for the oversight of that reference. Completed PPQs (Attachment 2) are to be part of the proposal and its due date. Completed APPQs (Attachment 3) are to be submitted directly to the RCO by the assessor via email to shaye.nelson@usmc.mil and Christa.Eggleston-sc@usmc.mil with the subject line stating "TECOM HPB RFP M00264-26-R-0009-APPQ" by 27 April 2026 @ 10:00 am Eastern Time. Forms completed by the assessor and submitted to the Government by the assessor will not count against the page limits.

6.5.4 Any Offeror that submits any contract reference that is not relevant will receive a "Not Relevant" rating for that contract reference in Past Performance. Any Offeror indicating that they have no "Past Performance" will receive an "Unknown Confidence" rating for Past Performance.

6.5.5 The Government reserves the right to contact the references provided and to use recent and relevant past performance information obtained from sources other than those identified by the offeror. This past performance information may be used for the evaluation of past performance.

6.5.6 The Government may also use other information such as Contractor Performance Assessment Reporting System (CPARS) and other data available from Government sources to evaluate an offeror's past performance. The Government reserves the right to limit or expand the number of references it decides to contact and to contact references other than those provided by the offeror.

6.5.7 When submitting a subcontractor effort, a commitment signed by offeror and subcontractor certifying that if a contract is awarded resulting from the proposal, the parties commit to joint performance as proposed shall be included and fully executed by both parties to be evaluated or considered. Affiliate companies, sister companies, teaming arrangements, joint venture agreement, etc., will be considered provided that sufficient documentation is included in the proposal. The primary offering entity must demonstrate that the affiliate will perform significant and critical aspects of the contract if awarded. Documentation includes a copy of the signed arrangement such as documented affiliation, a copy of the teaming agreement, a copy of the joint venture agreement, etc. If the signed commitment is not fully executed by both parties and provided with the Past Performance Proposal, subcontractor references will not be evaluated or considered.

6.6 Volume 4 - Factor 3 - Price

6.6.1 The Offeror's price volume shall contain the SF1449 and a completed Government provided Pricing Sheet (Attachment 4). The Price Offer should reflect the Offeror's best pricing available. If discrepancies are found in comparison of SF1449 and the completed Pricing Sheet (Attachment 4), the Pricing Sheet (Attachment 4) will take precedence. All information relating to pricing data shall be included in this volume ONLY.

6.6.2 General Information: The Offeror shall complete RFP, Pricing Sheet. All pricing, including but not limited to unit pricing, subtotals, and final price, shall be rounded to two decimal places (i.e., \$12.34). Any dollar amount beyond two decimal places will be rounded down.

6.6.3 SF 1449, Price Proposal corresponding to CLIN structure and supporting materials. The fully burdened total price for each CLIN of Schedule of Supplies /Services of the SF 1449 in the solicitation should be clearly annotated in the proposal.

6.6.4 Price Reasonableness and Completeness. The Government will verify that all solicitation requirements have been priced, figures are correctly calculated, and prices are presented in a clear and useful format. Additionally, unbalanced pricing, as defined in FAR 15.404-6(a)(1), poses an unacceptable risk to the Government and may be a reason to reject an Offeror's proposal. Price submissions must be sufficiently detailed to demonstrate their reasonableness. Additionally, the following areas must be addressed:

- Complete RFP Pricing Sheet with your pricing, including both prime and subcontractor/team member labor rates that make up the total pricing.
- Identify all associated discounts you are proposing in clear, concise detail.

6.6.5 Price Information. The total evaluated price will consist of the proposed price for the base period, the four (4) option periods, and the option in accordance with 52.217-8, which will be evaluated based on the price of the final option period divided by two. Pricing will be incorporated into Schedule of Supplies/Services of the SF 1449 upon contract award.

Information beyond that required by this instruction shall not be submitted unless you consider it essential to document or support your price position. All information relating to the proposed price, including all required supporting documentation must be included in the section of the proposal designated as the Price Volume. **Under no circumstances shall this information and documentation be included elsewhere in the proposal.**

Evaluation - Commercial Products and Commercial Services

Addendum to Evaluation - Commercial Product and Commercial Services

52.212-2 Addendum - Evaluation - Commercial Items

1. General:

The Government intends to award one Firm Fixed Price (FFP) contract resulting from this solicitation to the responsible Offeror whose offer, conforming to the solicitation, represents the best value to the Government, price, and other factors considered. The Government will employ a Tradeoff analysis of cost or price and non-price factors (FAR 15.103-1). Thus, a proposal that is not the lowest priced, technically acceptable may form the basis of award, if it is determined that the additional non-cost factors are worth the additional cost in relation to the other proposals received.

1.1 Definitions:

A) Definition and Adjectival Ratings

(1) TERMS - As used throughout this solicitation, the following terms shall have the meanings set forth below:

(a) PERFORMANCE CONFIDENCE ASSESSMENT - is an evaluation of the likelihood (or Government's confidence) that the Offeror will successfully perform the solicitation's requirements; the evaluation is based upon past performance information.

(b) RECENCY - as it pertains to past performance information, is a measure of the elapsed time that since the past performance reference occurred. Recency is the time-period during which past performance references are considered relevant. For the purposes of this solicitation, the Government will only consider work performance within 5 years of the RFP issuance date.

(c) RELEVANCY - as it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood that the past performance is an indicator of future performance.

(d) RISK - as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to achieving the technical factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

(e) STRENGTH - is an aspect of an Offeror's proposal that has merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

(f) SIGNIFICANT STRENGTH - is an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to considerable advantage of the Government during contract performance.

(g) WEAKNESS - is a flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.

(h) **SIGNIFICANT WEAKNESS** - is a flaw that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.

(i) **DEFICIENCY** - is a material failure of a proposal to meet a government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.

(2) **ADJECTIVAL RATINGS**

(a) **The following combined Technical/Risk adjectival ratings/definitions shall be used for Factor 1. An adjectival rating of 'Unacceptable' for Factor 1 will result in the entire proposal being deemed unawardable.**

RATING	RATING DESCRIPTION
BLUE/OUTSTANDING	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
PURPLE/GOOD	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
GREEN/ACCEPTABLE	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
YELLOW/MARGINAL	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
RED/UNACCEPTABLE	Proposal does not meet the requirements of the solicitation and, thus, contains one or more deficiencies, and is unawardable, and/or risk of performance is unacceptably high.

(b) Past performance is assigned an overall Performance Confidence Assessment rating based the Offeror's record of recency, relevancy, and quality of past performance. There are three (3) aspects to the Past Performance evaluation: Recency, Relevancy (including context of data), and Quality (including general trends in Contractor performance and source of information).

(1) Recency: The first aspect is to evaluate the recency of the Offeror's past performance. Recency is generally expressed as a time period during which past performance references are considered relevant and is critical to establishing the relevancy of past performance information. Per FAR 52.212-1 Addendum, paragraph 6.5.1, Offerors shall provide Past Performance references within five (5) calendar years of the RFP issuance date.

(2) Relevance: The second aspect of the past performance evaluation is to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired under this solicitation. In establishing what is relevant for the acquisition, consideration is given to those aspects of an Offeror's history of contract (or subcontract) performance that would provide the most context and give the greatest ability to measure whether the Offeror will successfully satisfy the current requirement. Common aspects of relevancy include, but are not limited to, the following: similarity of product/service/support, complexity, dollar value, contract type, use of key personnel (for services), and extent of subcontracting/teaming. Relevancy ratings are based on the definitions below:

RATING	RATING DESCRIPTION
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Quality: The third aspect of the past performance evaluation is to establish the overall quality of the Offeror's past performance (see FAR 15.304(c)(2)). The past performance evaluation conducted in support of a current source selection does not establish, create, or change the existing record and history of the Offeror's past performance on past contracts; rather, the past performance evaluation process gathers information from customers on how well the Offeror performed those past contracts. The Government will review all past performance information collected and determine the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into a Performance Confidence Assessment. A separate quality assessment rating is not required; rather, the Past Performance Confidence Assessment rating is based on the Offeror's overall record of Recency, Relevancy, and Quality of performance. Performance Confidence Assessment ratings are as follows:

RATING	RATING DESCRIPTION
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.

Unknown Confidence (Neutral)	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort.

1.2 The solicitation requirements include all stated terms, conditions, representation and certification, and other information required by this solicitation. The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, each initial proposal should contain the Offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if determined necessary by the KO.

1.3 A written notice of award or acceptance of an offer mailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

1.4 If the KO determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the KO may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

1.5 The Government will award a contract resulting from this solicitation to the responsible Offeror, whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. **The Government will evaluate the Offeror's compliance with the instructions contained in the RFP, including the instructions and other text contained in the Addendum to FAR 52.212-1 above. The Contracting Officer will remove from competition those proposals that fail to comply with the solicitation, including the instructions and other text contained in the Addendum to FAR 52.212-1 above. Such proposals that fail to comply will not be further evaluated under Factors 1-3 below.**

The following factors shall be used to evaluate offers:

Factor 1- Technical Approach

Factor 2- Past Performance

Factor 3- Price

1.6 Relative order of importance: In determining the best value, Factor 1, Technical Approach, is significantly more important than Factor 2 - Past Performance. Factors 1 and 2, when combined are significantly more important than Factor 3- Price.

1.7 Prospective Offerors are forewarned that a proposal meeting solicitation requirements with the lowest evaluated price may not be selected for award if a higher rated evaluated priced proposal is determined to be most advantageous to the Government.

2. Factor 1- Technical Approach

The Government will evaluate the demonstrated capability to perform all of the tasks outlined in the PWS, providing continuous quality support through manning, communication, recruiting, retaining, and the management of any subcontractors. The Government will evaluate the proposed staffing solution to support the required task objectives, considering qualifications, capabilities, and labor mix/labor categories to meet the objectives. The Government will evaluate the Offeror's proposal for the capacity to support the PWS performance requirements and can execute a comprehensive approach that ensures quality performance and use of staff resources to meet PWS objectives to execute the intended strategy.

The Government will evaluate the proposed management approach suitable to the services delineated in the PWS and consistent with its technical approach. The Government will evaluate the proposed techniques, processes, and quality management procedures, controls, subcontractor management processes, and quality provisions necessary to execute the approach. Additionally, the Government will evaluate the Offeror's process for identifying, recruiting, retaining, training, and replacing personnel with required qualifications and capabilities.

3. Factor 2- Past Performance

The Past Performance factor will consider both the Offeror past performance on recent, relevant, efforts under the open market and private industry and considered in assessing the degree of confidence, the Government has in an Offeror's ability to provide the required services based on a demonstrated record of performance under similar circumstances. Evaluators may use information obtained from the references provided by the Offeror as well as information from through any other Government or public records to evaluate the Contractor's Offeror's past performance. Contractors Offerors who have successfully performed requirements similar in scope, magnitude, and complexity will be evaluated more favorably.

The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to supply products and services that meet users' needs, based on a demonstrated record of performance. Performance confidence is assessed at the overall past performance factor level after evaluating aspects of the offeror's recent past performance. The past performance evaluation may consider past performance information regarding predecessor companies, key personnel who have relevant experience, or subcontractors that will perform major or critical aspects of the requirement when such information is relevant to the performance of tasks detailed in the PWS.

Past performance information may be obtained from any other sources available to the Government, to include, but not limited to, the CPARS.gov, Electronic Subcontract Reporting System (eSRS), or other databases; interviews with Program Managers, Contracting Officer, and Fee Determining Officials; and the Defense Contract Management Agency.

If an Offeror submits no record of past performance information or references submitted fail to provide sufficient information, and the Government MCINCR-RCO has no information available in its possession regarding the Offeror's past performance, that Offeror will receive a Neutral/Unknown Confident rating (i.e., the Offeror is evaluated neither positive nor negative) for past performance.

4. Factor 3 - Price

4.1 The Government will evaluate offers for award purposes by adding the total price for all periods, the base period, and four option periods. This includes the option in accordance with 52.217-8, which will be evaluated based on the price of the final period divided by two. The Government will conduct a price reasonableness analysis of the Offeror's proposed price. In order to be considered for award, the proposed price must be determined to be fair and reasonable.

4.2 Proposed pricing is considered in the overall evaluation of "best value" to the Government. The price of the base period and all option periods will be evaluated but this factor will not be given an adjectival rating. The prices for all option periods will be evaluated in accordance with FAR 52.217-5, Evaluation of Options. In addition, FAR clause 52.217-8 "Option to Extend Services" is included in this requirement and will be evaluated. This option shall not exceed 6 months in any combination and will be evaluated by utilizing the total amount of the final option period and dividing it by 2 providing a total amount for a 6-month period. This solicitation is and should reflect the Offeror's most competitive price and terms.

4.3 The Government may also determine a proposal unacceptable should the proposed prices be materially unbalanced. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more items is significantly overstated or understated as indicated by the application of price analysis techniques.

4.4 Reasonableness. For the price to be reasonable in its nature and amount, it should not exceed that which would be incurred by a prudent person in the conduct of a competitive business. Reasonableness considers the context of a given source selection, including current market conditions, general economic conditions, and other factors that affect the ability of an Offeror to perform the contract requirements. Normally, adequate price competition establishes a fair and reasonable price.

4.5 Completeness and Accuracy (See also FAR 52.212-1 Addendum, paragraph 6.6). The Government will review the pricing tables for completeness and accuracy. A determination will be made as to whether the Offeror properly completed the pricing tables. The Offeror's proposal will be checked for mathematical correctness to include the following:

- 1) Checking arithmetic in all computations; and
- 2) Ensuring all prices are summarized correctly; and
- 3) Pricing does not exceed hundredths decimal place (includes excel spreadsheet calculations if provided).

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration.	Feb 2026		
52.222-50	Combating Trafficking in Persons.	Feb 2026		
52.223-23	Sustainable Products.	Feb 2026		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications.	Feb 2026		
52.247-68	Report of Shipment (REPSHIP).	Feb 2006		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.227-7028	Technical Data or Computer Software Previously Delivered to the Government.	Jun 1995		
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)	Mar 2024	Deviation 2024-O0006	Mar 2024

FAR Clauses Incorporated by Full Text

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov [Insert one or more Internet addresses]

(End of provision)

DFARS Clauses Incorporated by Full Text

252.227-7992 Identification and Assertion of Use, Release, or Disclosure Restrictions. (Feb 2026) Deviation 2026-O0036 (Feb 2026)
(DEVIATION 2026-O0036)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions.* As used in this provision--

"Computer software" is defined in--

(1) The 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in--

(1) The 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software the Contractor must deliver with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer Program (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical data or computer software to be delivered with restrictions ¹	Basis for assertion ²	Asserted rights category ³	Name of person asserting restrictions ⁴
(LIST) ⁵	(LIST)	(LIST)	(LIST)
==	==	==	==

¹ For technical data (other than computer software documentation) related to items, components, or processes developed at private expense, identify both the deliverable technical data and each such items, component, or process. For computer software or computer software documentation identify the software or documentation.

² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data relate. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

⁵ Enter “none” when all data or software will be submitted without restrictions.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)